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Subject: Response to the White House RFI on the Development of an AI Action Plan

Introduction

As the CTO and co-founder of OODA LLC, a firm dedicated to advancing technology, cybersecurity, and U.S. national security, I am pleased to respond to the OSTP and NITRD RFI on the AI Action Plan.

I base this recommendation on over three decades of work on issues surrounding the optimization of technology for business and government outcomes. It is also informed by research on advanced AI at our OODALoop.com site and interactions with the business and government leaders in the OODA network, who continuously collaborate on related issues.

The administration's AI vision, as articulated in Executive Order 14179 and the Vice President's four goals for American AI, aligns with my belief that the U.S. must lead in AI innovation to promote human flourishing, economic competitiveness, and national security. To achieve this, I propose that the administration support a bold yet simple policy shift that will include championing Congressional action: the **AI Mirror Rights Act (AMRA)**. Doing so will unlock AI's potential by granting any AI system human-like access to copyright-protected material while protecting rights of those who create and own copyrighted material. This policy shift as recommended is done without a need for burdensome regulation or complicated oversight, and will protect holders of copyright while accelerating America's AI dominance.

Proposed Policy Action: The AI Mirror Rights Act (AMRA)

I recommend that the AI Action Plan include a priority action to urge Congress to amend the U.S. Copyright Act (17 U.S.C. § 107) with the **AI Mirror Rights Act (AMRA)**. The proposed text is concise:

“An open artificial intelligence system with publicly accessible weights, when directed by a human, shall be treated as an extension of that human’s legal personhood. Such systems may access and process copyright-protected works to the same extent as a natural person, provided their use complies with the fair use provisions of this section, as determined by existing judicial precedent and self-reported intent.”

Core Principles:

1. **Only Transparent AI Earns Human Rights:** AMRA limits this privilege to open source AI systems with open weights—models whose parameters are publicly verifiable—ensuring accountability without bureaucracy.
2. **Humans Lead, AI Follows:** AI inherits the fair use rights of its human designers and operators (e.g., to read, analyze, or transform copyrighted works), tying its actions to human intent and responsibility.
3. **No New Red Tape:** Enforcement relies on existing courts and fair use precedent—no agencies, audits, or costly oversight required.
4. **Innovation Unleashed:** By mirroring human rights, AI can legally leverage vast cultural datasets, accelerating American breakthroughs in AI.

Implementation:

- **Action:** The Executive Branch will recommend AMRA to Congress as a standalone bill or an amendment to an existing tech-focused legislative package by Q3 2025.
- **Cost:** Negligible. Relies on current legal frameworks, requiring no funding or overhead.
- **Scope:** Applies to any open-weights AI directed by a U.S. citizen or entity, from startups to researchers and to any large frontier model that publishes open weights.

Alignment with Stated Administration AI Goals

AMRA directly supports the Administration’s vision:

1. **Gold Standard Worldwide:** By tying AI rights to transparency, AMRA positions American open-weights AI as the global benchmark—trusted, verifiable, and innovative—making the U.S. the partner of choice.
2. **Pro-Growth Policy:** AMRA eliminates legal uncertainty around AI training data without adding regulation, reversing the stifling effects of prior orders like EO 14110 and fostering a transformative industry.
3. **Freedom from Bias and Authoritarianism:** Open weights ensure community scrutiny, preventing ideological capture, while human-directed AI reflects democratic values—not top-down control.
4. **Pro-Worker Empowerment:** AMRA enables workers to harness AI as a creative partner, boosting productivity (e.g., engineers training robotics AI on sci-fi) without replacement, as humans remain the guiding force. And it protects copyright holders from being taken advantage of by large closed frontier models which can hide weights and training data.

Justification and Benefits to Humanity

AMRA is not just a policy, it is a catalyst for human flourishing and American AI leadership. Its benefits are profound:

- **Accelerates Advancement:** “AI learns like humans, so humans soar.” By granting open-weights AI access to copyrighted works (books, films, trademarks), we unlock rich datasets for training, driving breakthroughs in robotics, cybersecurity, and AGI—fields critical to America’s future.
- **Empowers Creators and Innovators:** Copyright holders retain control via existing fair use laws, while innovators (from lone coders to startups and large frontier models) gain legal clarity to build transformative tools. Companies that hide their models and weights cannot take advantage of copyright protection under this law.
- **Boosts Economic Competitiveness:** “Transparency fuels trust, trust fuels growth.” Open-weights AI fosters a collaborative ecosystem, outpacing closed systems in adversarial nations and securing U.S. tech dominance.
- **Enhances National Security:** Transparent AI, legally trained on diverse data, strengthens AI which can be used for a wide range of national security systems. For example, systems which seek to assess potential adversary decisions can be trained on all public information on the adversary, regardless of source. The same is true of assessing hostile nations, all sources can be brought to bear, including copyright protected ones. Researchers and builders can leverage AMRA to train AI spotting geopolitical patterns in media, all without proprietary black boxes.
- **Enriches Humanity:** By incentivizing open AI, AMRA seeds a future where knowledge compounds freely, amplifying human creativity and problem-solving worldwide.

Why Open Weights?

Restricting AMRA to open-weights systems is strategic:

- **Trust Without Oversight:** Publicly verifiable weights let creators and citizens peek under the hood, ensuring fair use without government meddling.
- **Openness as Advantage:** It nudges the AI field toward collaboration and greater acceleration of capabilities.
- **American Edge:** This sets U.S. transparent AI apart from opaque rivals, aligning with our values and security needs.

Conclusion

I believe **Closed AI hides, Open AI leads.** The AI Mirror Rights Act (AMRA) is a concrete, high-impact policy action for the AI Action Plan. It’s simple, cost-free, and visionary—mirroring human rights to transparent AI to drive innovation, empower workers, and secure America’s AI dominance. I urge OSTP and NITRD NCO to champion AMRA, ensuring that “only transparent AI earns human rights” becomes the rallying cry for a new era of American leadership. This is how we make AI not just a tool, but a partner in human progress.

Very Truly Yours,

Bob Gourley
Co-Founder and CTO, OODA LLC